

Northgate Talent Partners LLC

www.northgatetalent.com

August 17, 2015

Jason Myers
Chief Operating Officer
Roach, Moss and Hall

Dear Mr. Myers:

Thank you for the two mornings your people gave us. They were candid conversations, more candid than these usually are at this stage, and we are grateful for them. This letter sets out the terms on which we will conduct the search for your chief financial officer. It becomes our agreement when you sign the enclosed copy and return it to us.

The Assignment

You have asked us to find a chief financial officer for Roach, Moss and Hall. We take the work on a retained basis, which means we work it exclusively and we stay with it until the seat is filled. *From what your leadership described to us, the brief is a finance executive who has carried a company through a stretch of growth without letting the discipline of the close slip, who can hold a board conversation and a controller conversation on the same afternoon, and who is comfortable being the person in the room who says no.* We will put that into a written position specification in the opening weeks and ask you to correct it line by line. Nothing else in this letter matters as much as getting that document right, because every candidate we *approach will be approached against it, and because it is the one page on which both* of us can hold the other to account.

How We Will Run the Search

We run a search in four movements, and we do not begin one before the movement in front of it is finished.

- 1. Specification. We meet the people who will interview, including the board members, and we write the specification you sign off. We will also settle with *you at that point what the role pays and what it does not, because a* specification that is silent on that attracts the wrong reader.

- 2. Research. We map the companies where this person is most likely to be sitting today, agree that map with you, and only then work up individuals against it. Companies first, names afterwards.
- 3. Approach and assessment. Our consultants make the approaches themselves, and no one else does it for them. We meet the serious candidates in person and more than once, and we take references we have chosen rather than the ones a candidate offers us.
- 4. Slate and close. We present a short slate with a written assessment of each candidate, run the interview process around your calendar, and stay with you through the offer and the resignation that has to follow it.

You will hear us describe candidates by their current role rather than by name until the point they agree to meet you. That is not ceremony. The people worth having are employed and well regarded where they are, and a name that circulates is a candidate who withdraws.

Your Team

Sandra Fuentes, a Principal of this firm, leads the search and is your contact for anything touching scope, pace, or a decision that needs making. Jeffrey Patterson, our Research Consultant, builds the target list and keeps it current as the market answers back. James Grant, Senior Consultant, runs the interview calendar with your office and sits with Sandra Fuentes on the assessment work, so that two of us have met every candidate who reaches you. I hold this firm's commitment to you. If at any point the search is not going the way this letter describes, call me and say so.

Fees, Expenses, and the Start of Work

The fee for this assignment and the schedule on which it is billed are set out on the signature page of this letter, which counsel for both sides will execute with us. Expenses are billed at cost and itemized: candidate travel, our own travel to meet candidates, and background verification. We do not bill research time, telephone, courier, or administrative support, and we do not mark up an expense. Work begins August 27, 2015, and we would like the specification session held in that first week, while your leadership still has the conversation fresh.

Term and Termination

The engagement runs from the start date above until the position is filled, and either of us may end it earlier on thirty days' written notice. If you end it, you owe the portion of the retainer earned to that point together with expenses already incurred. If we end it, we will hand over the position specification, the research file, and an

honest account of where every conversation in progress stands, so that whoever picks the search up is not starting from a blank page.

Confidentiality

We treat what we learn about Roach, Moss and Hall, its people, and its plans as confidential, and we expect the same care in the other direction for the people we bring you. Candidate materials go to the interviewing group and no further; they are not for general circulation inside the company. Neither of us will name the other in publicity about this search without written consent. For as long as this engagement is open, and for one year after it closes, we will not approach anyone employed by you on behalf of another client.

If the Placement Does Not Hold

If the executive we place leaves within the first year, for a reason other than a change you make to the role or to whom it reports, we will conduct one replacement search and you will owe only the out-of-pocket expenses of it. We ask one thing in return, which is that you tell us early when something is not working.

Limitation of Liability

We will do this work with the care and skill of a firm that has done it many times, and we do not guarantee a hire. Taken together across all claims, our liability under this letter is limited to the amounts you have actually paid us under it, and neither of us is liable to the other for indirect or consequential loss. Nothing here limits a liability that the law does not permit us to limit.

Governing Law

This letter is governed by the law of the state in which our principal office sits, and any dispute arising under it will be brought in the courts of that state. If a court sets aside any provision of this letter, the remainder stands.

If this describes our understanding, please sign both copies and return one to us. Sandra Fuentes will call your office the same day to put the specification session in the calendar.

Fixed professional fee, as executed: \$92,000

Kelly Chavez

Managing Director

Date: August 17, 2015

Jason Myers

Chief Operating Officer, Roach, Moss and Hall

Date: August 17, 2015